

and annoyed, the sheriff and under-sheriff are deceived, and the laws of no force; "For in my opinion (he said), in debt when there is a return on the original of *nichil*, and on *Alias* and *Capias* of *nihil*, or *non est inventus*, [made] by the Attorney of the party, without the sheriff, and then the defendant is sued to the exigent and outlawed, he would have an action on the case against the party who made the false return, when the defendant is [a man] of substance and easily to be found." And to this the Chief Justices said nothing, but seemed to agree as to the law. Lord Anderson, Chief Justice of the Common Bench, said that every attorney of the Common Bench took an oath to reveal every falsity and misdemeanour in the returning of writs, and other things, of all attorneys of the Court, if they knew of any; otherwise they were perjured if they did not do this.

Another cause of hearing on a bill and answer, William Farington, plaintiff, and ,¹ defendant. A bond was sealed by one William Farington, [the plaintiff's] third son, with additions² in all respects as if he was the father; and the father was arrested and paid the debt. And for this he sued the obligee in this Court. And when the matter appeared, William Farington the father prayed to be dismissed without costs; and this was allowed by the Court, if he would swear that he knew when he preferred his bill that his son William Farington was bound to the same obligee, with all the additions² of his father.

FARING-
TON'S case

[p. 49]

Bill dis-
missed with-
out costs

Another cause of hearing between Maye, plaintiff, and Ebden, defendant, a man of good fame and credit in Sussex, and having £200 in lands. The bill was scandalous and slanderous, and a defamation of the defendant, and concerned supposed riots, and charged him in manner with felony and other misdemeanours. Divers witnesses were examined and proved nothing at all. And therefore the cause was dismissed, the bill withdrawn from the file and cancelled, and the plaintiff was fined £40 with imprisonment.

MAYE
v.
EBDEN
Riot, &c.

Slanderous
bill dis-
missed with
costs, and
withdrawn
from the file
for want of
proof

¹ Blank in MS.

² This word is used in the sense of descriptions.